



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
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BY: **MA. JULINA B. JUTILLO**
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 27TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON
FEBRUARY 3, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Michael C. Escuyos		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ABSENT: none

ORDINANCE NO. 18
Series of 2026

“AN ORDINANCE IMPOSING A TEMPORARY LIQUOR BAN ON THE SALE, DISTRIBUTION AND CONSUMPTION OF ANY INTOXICATED AND ALCOHOLIC BEVERAGES IN THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR DURING THE OCCURENCES OF TROPICAL CYCLONES (SIGNAL NO 1 OR HIGHER) NATURAL AND MAN-MADE CALAMITIES AND PROVIDING PENALTIES FOR VIOLATION THEREOF”

Author: Hon. Harvey S. Manawatao

Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, Section 16 (General Welfare Clause) of Republic Act No. 7160 otherwise known as the Local Government Code of 1991 mandates that the Local Government Units shall maintain peace and order, ensure public safety and enhance the economic prosperity of the constituents;

WHEREAS, the Municipality of Carmen, Province of Surigao del Sur is frequently affected by typhoons and other natural calamities which necessitates the strict maintenance of public order to ensure the safety of the residents;

WHEREAS, the consumption of intoxicating liquor during disasters often impairs judgment leading to accidents, public disturbance and the potential disruption of rescue efforts;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

Section 1. SHORT TITLE- This Ordinance shall be known as the "CARMEN CALAMITY LIQUOR BAN ORDINANCE."

Section 2. SCOPE & PROHIBITION- Temporary liquor ban is hereby imposed, prohibiting the sale, purchase, distribution and consumption of any intoxicating beverages in public places, stores, restaurants or any establishments within the territorial jurisdiction of the Municipality of Carmen, Province of Surigao del Sur during the following scenarios:

- a) When Tropical Cyclone with a strength of at least Signal No 1 is hoisted by the Philippine Atmospheric Geophysical Astronomical Service Administration (PAGASA) over the municipality.
- b) Upon the declaration of State of Calamity by both the Sangguniang Bayan or the Municipal Mayor and the barangay itself due to typhoon, flooding, earthquakes, landslides, fires or forest fires with the greater magnitude and/or acts of God.
- c) During the occurrences of human induced disasters that threaten public peace.

Section 3. DEFINITION OF TERMS-

- a) INTOXICATING BEVERAGES- any liquor, beer, wine or distilled spirits intended for consumption containing alcohol.
- b) PUBLIC PLACES- roads, streets, sidewalks, plazas, parks, tourism sites and other open spaces.
- c) ESTABLISHMENTS- stores, sari-sari stores, bars, restaurants and other business entities authorized to sell goods.

Section 4. DURATION- The liquor ban shall take effect immediately upon the announcement of Signal No. 1 by PAGASA and shall remain in full force and effect until twenty- four (24) hours after the typhoon has been lifted by PAGASA and through the MDRRMO and/or the State of Calamity has been lifted.

Section 5. EXEMPTION- The prohibition does not apply to the consumption of liquor inside private homes or abode provided that such consumption does not Cause public disturbance, violence or a breach of peace in the community.

Section 6. PENALTIES- Any person or establishment found violating this Ordinance shall be penalized as follows:

FIRST OFFENSE- stern warning

SECOND OFFENSE- a fine of ONE THOUSAND PESOS (Php 1,000.00) and confiscation of liquor and other intoxication drinks.

THIRD OFFENSE and SUBSEQUENT OFFENSES- a fine of TWO THOUSAND FIVE HUNDRED PESOS (Php 2,500.00)

For Business Establishments- the same penalty including a Business Permit suspension of not more than One (1) month.

Section 7. ENFORCEMENT- The Philippine National Police (Municipal Police Station), Barangay Officials and Barangay Tanods are hereby mandated to strictly enforce this Ordinance.

Section 8. SEPARABILITY CLAUSE- If any provision of this Ordinance is declared invalid and/or unconstitutional, the other provisions not affected shall continue to be in full force and effect.

Section 9. REPEALING CLAUSE- All Ordinances, Resolutions or parts thereof inconsistent with this Ordinance are hereby repealed or modified accordingly.

Section 10. EFFECTIVITY CLAUSE- This Ordinance shall take effect twenty-one (21) days after posting in at least 3 conspicuous places in the municipality.

ENACTED this 3rd day of February, 2026 at Carmen, Surigao del Sur.

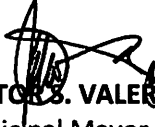
I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LL.B., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice-Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
2-16-2026